

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/16/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
*HEARING ON MOTION FOR DISCOVERY A PROTECTIVE ORDER, TO STAY ALL WRITTEN DISCOVERY, AND FOR THE ISSUANCE OF A CASE MANAGEMENT ORDER. FILED BY SEQUOIA EQUITIES, INC.
FILED BY:
TENTATIVE RULING:

Defendants Sequoia Equities, Inc. and Alder Creek Management, Inc. ("Defendants") filed a Motion for Protective Order and Stay All Written Discovery and for the Issuance of a Case Management Order on June 26, 2025 (the "Motion for a Protective Order and Other Relief"). The Motion for a Protective Order

and Other Relief was initially set for hearing on October 6, 2025. The motion is opposed.

On October 6, 2025, the Court ordered the parties to meet and confer and file a Joint Statement by October 10, 2025 and continued the motion to October 20, 2025. A Joint Statement was filed by the parties on October 10, 2025. That statement indicated that the parties had met and conferred and that “[b]ased on those discussions the parties need a little more time to review and discuss the issues in the hope of reaching an agreement next week.” Subsequent filings in mid-October 2025 indicated that the meet and confer had not resolved the issue.

On October 20, 2025, the Motion for a Protective Order and Other Relief was continued to November 10, 2025. Thereafter, the motion was continued a couple of times to later dates (December 8, 2025 and February 2, 2026) before ultimately being re-set for hearing on March 16, 2026.

As the Court observed in its tentative ruling for the February 2, 2026 hearing date, the Court had trailed the Motion for a Protective Order and Other Relief several times to new court dates pending the adjudication of a motion to consolidate set to be heard in a related class action matter. As discussed below, that motion was denied and the Court moves forward with adjudicating this pending motion.

Background

The current operative complaint is the Second Amended Complaint filed December 23, 2025 (“SAC”). The plaintiffs under the TAC are Fuller Properties, LLC and 21 other entities (“Plaintiffs”).

The TAC alleges seven causes of action against the Defendants, including Breach of Fiduciary Duty, Fraud and Intentional Misrepresentation, Breach of Contract, Negligent Interference with Prospective Economic Advantage, Broker's Constructive Fraud, Declaratory Relief, and Accounting.

The alleged claims arise out of the Defendants’ obligations to the Plaintiffs under written management contracts for leasing and property management of apartment buildings owned by the Plaintiffs and Defendants’ alleged breaches of duties as agents for Plaintiffs. Plaintiffs allege the Defendants mismanaged the Plaintiffs’ apartment buildings, failed to account for rental and other proceeds from the properties, and made misrepresentations to Plaintiffs in managing their properties, among other claims. See SAC ¶¶43-52. They allege that among the breaches or wrongdoing by Defendants was the mishandling of tenant security deposits which resulted in a class action lawsuit (Contra Costa County Superior Court Case No. C23-02401) being filed against the Plaintiffs (the “Class Action”). See SAC ¶50. Recently, a motion to consolidate this case with the Class Action was denied.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402. On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. §

2017.020(a).

A party may also seek a protective order regarding discovery requests propounded on the party. See Code Civ. Proc. §§ 2030.090 (interrogatories), 2031.060 (inspection demands) and 2033.080 (requests for admissions). A court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. *Id.* at §§ 2030.090(b), 2031.060(b) and 2033.080(b).

Here, the matter involves a wide scope of claims touching upon a large number of properties and the leases and property management relating to thousands of tenancies. See Declaration of David Davidson filed June 26, 2025, ¶13 *et seq.* At present, no less than seventy-seven (77) discovery requests have been propounded by Plaintiffs and are at issue in the present motion (the “Discovery Requests”). *Id.* at ¶13. The management of discovery in this case is complicated by the fact that “voluminous and costly discovery has already taken place” in the related Class Action. *Id.* at ¶17. That matter appears to be settling which may also impact the scope of discovery necessary or, at the very least, inform the manner in which discovery proceeds.

It is evident to the Court that the fundamental point of Defendants’ motion—that discovery needs to be carefully case managed in this case—is well taken. The Court finds that doing so is necessary to avoid undue burden and expense and to efficiently handle the voluminous discovery. Moreover, the Court appreciates that production of a vast number of tenant files and related information also presents challenges for the adequate management and protection of third-party private information, including the personal information of tenants.

The Court concludes that the best route to ensure careful monitoring and structuring of discovery is through the appointment of a discovery referee. The Court finds, in its discretion, that such an appointment is necessary. The Court finds that there are multiple issues to be resolved simultaneously across a large number of Discovery Requests and that the complexity of such issues require a discovery reference to avoid the inordinate consumption of time by the Court.

Accordingly, the Court finds good cause to issue a Protective Order regarding the Discovery Requests and to appoint a discovery referee as follows:

1. The Court orders the appointment of a discovery referee (the “Discovery Referee”) herein, pursuant to Code of Civil Procedure section 639 and 640.
2. The Discovery Requests need not be answered until a coordinated discovery plan is put in place with the assistance of the Discovery Referee.
3. The Discovery Referee shall, in consultation with the parties, make such directives as reasonably necessary to (a) streamline and consolidate the written discovery answers/responses, (b) facilitate an orderly and efficient production of discoverable information and documents and (c) otherwise structure the discovery process.
4. Costs of the Discovery Referee shall be apportioned equally among the parties, except that the costs attributable to any discovery related motion or contested proceeding shall be subject to reallocation in the discretion of the Discovery Referee. However, the Discovery Referee may make such directives are necessary and appropriate for the shifting of the costs of discovery.

Sanctions

Lastly, the Court considers monetary sanctions against Plaintiffs as the non-prevailing parties. See Code Civ. Proc. §§ 2030.090(d), 2031.060(h) and 2033.080(d) (court shall impose a monetary sanction against

any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.).

Plaintiffs engaged in substantial efforts to meet and confer efforts to resolve the matter. See Declaration of Michael W. Rupprecht filed September 22, 2025 as part of Opposition, ¶19 *et seq.* and Declaration of Michael W. Rupprecht filed October 16, 2025, ¶12 *et seq.* Moreover, Plaintiffs' opposition rested on principled and substantial arguments, although ultimately the Court was persuaded to largely grant the motion as set forth herein.

Accordingly, the Court finds that Plaintiffs acted with substantial justification and the Court DENIES sanctions.

Disposition

The Court finds and rules as follows:

1. The Motion for a Protective Order and Other Relief is GRANTED IN PART and DENIED IN PART, as set forth above. Any affirmative relief requested and not addressed herein is DENIED.
2. The parties shall meet and confer within fourteen (14) days on (a) selection of the Discovery Referee and (b) a form of Discovery Referee appointment order.
3. If the parties do not agree on the person to be appointed as the Discovery Referee, the parties shall submit to the Court up to three nominees for appointment and the Court shall appoint the Discovery Referee pursuant to Code of Civil Procedure section 640(b). A single joint submittal by email to Department 34 shall set forth the parties' respective nominees and attach the proposed form of Discovery Referee appointment order. Such submittal shall be made within twenty-one (21) days of notice of entry of this order.
4. Plaintiffs' motion to compel responses to the Discovery Requests filed October 30, 2025 and set for hearing on May 4, 2026 is STRICKEN and the hearing date VACATED in light of the Court's ruling herein. The Discovery Referee shall oversee the process for responses to such Discovery Requests consistent with the provisions of this order.
5. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C24-01939
CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV
***HEARING ON MOTION IN RE: STAY - CONTINUED FROM 1/26/26**
FILED BY:
TENTATIVE RULING:

Defendant Alexander Popov ("Defendant Popov") filed a Motion to Stay ("Motion to Stay") in this matter on July 31, 2026. The Motion to Stay was initially set for hearing on November 10, 2025.

As noted in a prior tentative ruling, at a hearing on August 4, 2025, the Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nickolai Popov on August 25, 2025, in a related Probate matter, Case No. P25-00516 (the "Probate Case"), and ordered additional briefing.

The Court later continued the hearing on Motion to Stay (and another pending motion, the Motion to Set Aside and Vacate Judgment of Dismissal on the Grounds of Undue Influence and Lack of Capacity filed April 14, 2025 by Michael Popov) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

At the hearing on January 26, 2026, this Court again continued the Motion to Stay until after the Probate hearing regarding the special administrator of the Estate of Nickolai Popov on January 27, 2026.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

The Court finds that it is necessary and appropriate to stay this case considering the Solano County Criminal Proceedings and the ruling by the Court in the Probate Case.

The **Court GRANTS the Motion to Stay.**

The Court set a status conference regarding the status of the Criminal Proceedings and the Probate Case on August 08, 2026, at 8:30 am in Department 34.

3. 9:00 AM CASE NUMBER: C24-02356
CASE NAME: MINKYU KIM, PHD VS. CG PHARMACEUTICALS, INC.
***HEARING ON MOTION IN RE: PRO HAC VICE OF PHILIP B ZIPIN ORG FILED ON 11/15/24**
FILED BY:
TENTATIVE RULING:

On December 29, 2025, defendant CG Pharmaceuticals, Inc. ("Defendant") filed an application for leave for attorney Austin D. Kim ("Counsel") to appear on its behalf *pro hac vice* in this matter (the "Pro Hac Vice Application"). The Pro Hac Vice Application was set for hearing on March 16, 2026.

However, the motion was withdrawn by Defendant's Notice of Withdrawal filed February 19, 2026.

Disposition

The Court finds and rules as follows:

1. The Pro Hac Vice Application is DROPPED from calendar as WITHDRAWN.

4. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
***HEARING ON MOTION IN RE: STAY**
FILED BY:
TENTATIVE RULING:

Introduction

Defendant Alexander Popov ("Defendant Popov") filed a Motion to Stay ("Motion to Stay") this

matter on July 31, 2026. The Motion to Stay was initially set for hearing on November 03, 2025.

As explained below, **Defendant Alexander Popov's Motion to Stay is denied.**

Procedural Background

On September 11, 2025, Counsel for Defendant Alexander Popov filed a status update for Probate Case No: P25-00516. The status update requested a continuance of a hearing date from the Probate Court for the Parties to coordinate mediation for a global settlement of all four related cases (C25-00229; C24-01939; P25-00516; and P25-00495) which was set to take place on October 15, 2025. The Probate Court in a minute order dated September 25, 2025, continued the Motion to Set Aside the Appointment of Special Administrator to December 16, 2025.

At the November 03, 2025, hearing the Court continued the hearing on Motion to Stay (and another pending motion) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the hearing on January 26, 2026, this Court again continued the Motion to Stay until after the Probate hearing regarding the special administrator of the Estate of Nikolai Popov on January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

To avoid further continuances, the Court rules on the motion as follows.

Legal Standard

"[A] stay gives effect to the general rule that a court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*People v. Bell* (1984) 159 Cal.App.3d 323, 329.) When considering a stay of proceedings, the court will consider "(1) the interest of the plaintiffs in proceeding expeditiously with . . . litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; [and] (4) the interests of persons not parties to the civil litigation . . ." (*Avant! Corp. v. Superior Court* (2000) 79 Cal.App.4th 876, 885.) "[C]onvenience of the courts is best served when motions to stay proceedings are discouraged." (*Id.* at 888.)

Analysis

Basis for a Stay

Defendant Alexander Popov posits that a stay is proper under California Rules of Court, rule 3.151(f). (Motion at p. 7.) However, such rule does not exist. Assuming Defendant is referring to Rule 3.515, which addresses motions for stays, this rule is inapplicable here as it relates to stays requested in connection with proceedings being considered for coordination. (See also, Code Civ. Proc. § 404.5.) Here, there is no petition or request for coordination.

In any event, the Court, as the moving party also points out, has inherent authority to grant a stay of litigation. See *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ("Trial courts

generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.”).

This Motion Does not Prejudice any Party to the Special Administrator Dispute

This case is an interpleader matter where Plaintiff, a disinterested party who is a holder of Decedent Defendant Nickolai Popov’s money market account, is seeking to be discharged from liability for the account which is the subject of multiple adverse claims and deposit the funds with the Court to allow the adverse parties to resolve their claims regarding the subject account.

A stay would delay Plaintiff’s case and prejudice Plaintiff by forcing a uninterested party to remain in active court litigation when Plaintiff is actively taking the necessary steps to properly remove itself from a conflict between third parties.

On the other hand, Defendant Alexander Popov shows no prejudice to him or any other Defendant if Plaintiff’s interpleader proceeds. Significantly, adverse claimants cannot prevent a stakeholder from being discharged by claiming the funds should have been paid to them. (*Pacific Loan Mgmt. Corp. v. Superior Court* (1987) 196 Cal.App.3d 1485, 1489-1490 [“It is the stakeholder’s avowed disinterest in the interpleaded proceeds which gives him the right to interplead.”]). If a stay is later appropriate once the funds are interpled, the Court can reconsider if a stay is appropriate.

Denying the motion to stay would also allow the Court to keep its docket flowing free from an unnecessary stagnant case which would in turn promote judicial efficiency. On balance all of the equities cut in favor of denying the motion to stay.

Conclusion

As analyzed above, **Defendant Alexander Popov’s Motion to Stay is denied.**

5. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
*HEARING ON MOTION IN RE: SUBSTITUTION OF PARTY FILED BY UMPQUA BANK, AN OREGON
STATE-CHARTERED BANK
FILED BY:
TENTATIVE RULING:

Introduction

Plaintiff Umpqua Bank (“Plaintiff”) filed a Motion for Substitution (“Motion For Substitution”) on this matter on May 21, 2025. The Motion to Stay was initially set for hearing on August 11, 2025.

Procedural Background

At the August 11, 2025, hearing, this Court was inclined to grant Plaintiff Umpqua Bank’s motion to substitute Michael Popov, in his capacity as Special Administrator of the estate of Nickolai Popov, in place of deceased defendant Nikolai Popov, but continued the hearing to November 03, 2025, out of an abundance of caution to await the outcome of the Probate Court hearing regarding the special administrator scheduled for October 15, 2025..

On September 11, 2025, Counsel for defendant Alexander Popov filed a status update for Probate Case No: P25-00516. The status update requested a continuance of a hearing date from the Probate Court for the Parties to coordinate mediation for a global settlement of all four related cases (C25-

00229; C24-01939; P25-00516; and P25-00495) which was set to take place on October 15, 2025. The Probate Court in a minute order dated September 25, 2025, continued the October 15, 2025, Motion to Set Aside the Appointment of Special Administrator to December 16, 2025.

At the November 03, 2025, hearing, this Court continued this hearing to January 12, 2026, to have the benefit of the ruling for the December 16, 2025, Motion to Set Aside the Appointment of Special Administrator.

On December 16, 2025, the Probate Court filed a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

Analysis

This case is simple interpleader matter where Plaintiff, a disinterested party who is a holder of Decedent Nickolai Popov's money market account, is seeking to be discharged from liability for Mr. Popov's account which is the subject of multiple adverse claims and deposit the funds with the Court to allow the adverse parties to resolve their claims regarding the subject account.

The Court does find any compelling reason to deny or continue this matter as requested by defendant Alexander Popov's Objection to Plaintiff's Motion for Substitution filed on July 3, 2025. Any ongoing dispute over the appropriate administrator of the decedent's estate may be relevant to whether and when the Court makes further determinations regarding the disposition of the interpleaded funds. However, that issue does not mitigate in favor of denying or delaying the requested change in the named parties.

Conclusion

Accordingly, **the Court GRANTS Plaintiff Umpqua Bank's motion to substitute Michael Popov, in his capacity as Special Administrator of the estate of Nickolai Popov, in place of decedent Defendant Nikolai Popov. The moving party to submit the order after hearing in compliance with CRC 3.1312.**

**6. 9:00 AM CASE NUMBER: C25-01243
CASE NAME: PATELCO CREDIT UNION VS. GREGORY M CLIFTON JR
HEARING ON DEMURRER TO: 2ND AMENDED CROSS-COMPLAINT
FILED BY: PATELCO CREDIT UNION
TENTATIVE RULING:**

The demurrer filed by cross-defendants is **SUSTAINED WITH LEAVE TO AMEND**. The motion to strike is **DENIED AS MOOT**. Cross-complainant may file and serve an a third amended cross-complaint on or before March 26, 2026.

Background

Patelco Credit Union initiated this action in May of 2025 in connection with overdrafts made by Gregory M. Clifton Jr, who is a member of Patelco. Patelco alleges Clifton made overdrafts during a period it was navigating a ransomware attack, thereby taking advantage of Patelco's need to shut

down some of its databases. (Complaint filed May 1, 2025, hereinafter “Complaint,” ¶¶1-4.) In response to the complaint, Clifton filed a cross-complaint against Barry A. Smith, Patelco’s attorney, in conjunction with his answer. Three days later, prior to any response from Patelco, Clifton filed a First Amended Cross-Complaint. After a demurrer to the First Amended Cross-Complaint was sustained by Judge Devine in September 2025 with leave to amend, Clifton filed a Second Amended Cross-Complaint (“SACC”) naming both Smith and Patelco Credit Union as cross-defendants.

Clifton’s Second Amended Cross-Complaint, at issue here, alleges Smith, as an agent of Patelco, violated the federal Fair Debt Collection Practices Act (the “FDCPA,” 15 U.S.C. § 1692 *et seq.*) and the California Rosenthal Fair Debt Collection Practices Act (the “Rosenthal Act,” Civ. Code, § 1788 *et seq.*). After the demurrer to Clifton’s three causes of action in the previous cross-complaint, the SACC now contains ten causes of action, apparently all against both cross-defendants (though that is not entirely clear).

After efforts to meet and confer (see Declaration of Adeline Tungate in Support of Demurrer), cross-defendants demur pursuant to Code of Civil Procedure, § 430.10 (e), arguing that the SACC fails to state sufficient facts to constitute a cause of action. Cross-defendants also move to strike punitive damage allegations in the SACC. (SACC, 10:23; 11:10-12.)

Clifton opposes the demurrer, arguing the demurrer is not properly before the Court due to “discrepancies” concerning the address of opposing counsel. Clifton has filed three declarations concerning said discrepancies. He does not contend he lacked notice of the demurrer, or that he was unable to complete service of the SACC. The Court considers the papers on their merits and, to avoid confusion, clarifies that Clifton may rely on the “Change of Address” filed by cross-defendants’ attorneys on August 12, 2025 for purposes of serving cross-defendants.

Clifton has not opposed the motion to strike.

Standard on Demurrer

A demurrer tests the sufficiency of a complaint by raising questions of law. (*Wilner v. Sunset Life Ins. Co.* (2000) 78 Cal.App.4th 952, 958.) In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Ibid.*) The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (*Ibid.*; Code Civ. Proc., § 452.)

Demurrer Discussion

A. Claims Against Patelco

The demurrer contends Patelco is not a “debt collector” subject to the FDCPA and therefore all the claims asserted against it fail. In this portion of the demurrer, cross-defendants omit any mention of the Rosenthal Act, which is also pleaded in the SACC. Cross-defendants argue the FDCPA requires a debt collector to be a third party and does not include a creditor collecting on its own behalf. Cross-defendants, on this point, are correct.

The case cited by cross-defendants on this point, however, makes an important distinction

between the FDCPA and the Rosenthal Act. In *Davidson v. Seterus, Inc.* (2018) 21 Cal.App.5th 283, the court points out that, while “[t]he FDCPA specifically excludes [the consumer's creditors] from the definition of ‘debt collector,’ in contrast to the Rosenthal Act, ‘the Rosenthal Act does not so limit the definition of ‘debt collector.’” (*Davidson, supra*, 21 Cal.App.5th at 303.) The court went onto reverse the trial court’s sustaining of a demurrer to a complaint because the definition of a debt collector under the Rosenthal Act is broader than under the FDCPA. (*Id.* at 304.)

Pursuant to Civil Code section 1788.2, subdivision (c), the term “debt collector” means “any person who, in the ordinary course of business, regularly, on behalf of that person or others, engages in debt collection.” Further, pursuant to subdivision (g), the term “person” includes “a natural person, partnership, corporation, limited liability company, trust, estate, cooperative, association, or other similar entity.” Patelco fails to demonstrate how it does not fall within the broader definition in the Rosenthal Act, which the SACC specifically invokes.

Still, nowhere in the complaint is a cause of action under the Rosenthal Act stated separate and apart from the Act’s invocation of the federal FDCPA. The only references to the Rosenthal Act are in connection with its one section that invokes the federal FDCPA. Accordingly, the demurrer by Patelco is sustained on the basis that, pursuant to the FDCPA, Patelco is not a debt collector.

B. First Cause of Action (“Misstatement of Dispute Rights”)

Clifton alleges that Smith violated 15 U.S.C. § 1692e (10), which prohibits a debt collector from using a “false representation or deceptive means to collect or attempt to collect any debt or to obtain information concerning a consumer.” Clifton alleges that the January 21, 2025 debt collection letter was misleading because it stated, “Call or write to us by March 3, 2025, to dispute all or part of the debt. If you do not, we will assume the Credit Union's information is correct.” The statement, according to the SACC, is misleading because (1) it incorrectly instructed that the debt could be disputed by telephone despite a written dispute being necessary and (2) it extended the dispute deadline forty-one (41) days instead of the thirty (30) days mandated by statute.

Smith’s initial communication, in fact, stated “Call or write to us [...] [¶] If you write to us by March 3, 2025, we must stop collection [...]”, emphasis added.) (SACC, Exhibit A.)

Cross-defendants demur, arguing that plaintiff can provide no authority for the idea that giving more time is a violation of the FDCPA. Plaintiff’s opposition, without providing the specific page numbers, cites *Camacho v. Bridgeport Fin., Inc.* (9th Cir. 2005) 430 F.3d 1078 and *Swanson v. Southern Or. Credit Serv.* (9th Cir. 1988) 869 F.2d 1222. *Swanson*, which dealt with an Oregon debt collection law, held the debt collector gave a *shorter* response period that required by statute, not longer.

In the ruling sustaining the previous demurrer, the Court noted *Camacho* supports the *accuracy* of Smith’s statement. In *Camacho* the debtor challenged a debt collector’s initial notice claiming it misrepresented her rights by stating that the dispute had to be in writing, contrary to the provisions of 15 U.S.C.S. § 1692g(a)(3), which simply states the notice must contain “a statement that unless the consumer, within thirty days after receipt of the notice, disputes the validity of the debt, or any portion thereof, the debt will be assumed to be valid by the debt collector.” The Ninth Circuit held affirmed denial of the debt collector’s motion to dismiss because the statute contained *no* requirement that the dispute be in writing, so by including such requirement in its communication,

the debt collector could be found liable for misrepresentation. The plain meaning of the statute was neither absurd in its results nor contrary to legislative intent. Thus, the collection notice in question violated Section 1692g insofar as it stated that disputes had to be made in writing. (*Camacho, supra*, 430 F.3d at 1082.) In fact, oral disputes are not only allowed, but do lead to some limited protections, such as precluding the debt collector from communicating the debtor's credit information to others without including the fact that the debt is in dispute. (*Ibid.*)

Accordingly, because the communication from Smith to Clifton was accurate and contained no misstatement, the Court sustains the demurrer to the first cause of action.

C. Second Cause of Action ("Misstatement of 30-Day Dispute Period")

Clifton alleges Smith violated 15 U.S.C. section 1692g based on the same "misleading" communications described above. As noted, the communications were not misleading. 15 U.S.C. section 1692g(b) provides that a debt collector must "cease collection of the debt until appropriate verification of the debt is sent," where the "customer notifies the debt collector in writing" that "the debt, or any portion thereof, is disputed" within the 30-day period referred to in subsection (a) of the statute. Subsection (a) describes the period referred to as thirty days after "receipt" of the initial debt collection notice. (15 U.S.C. § 1692g(a).)

Clifton does not argue he timely disputed the debt, and the facts pleaded indicate he did not. The thirty days expired before any written communication with Smith in late May, whether the thirty days is measured from the date of mailing to Clifton's previous address or from the date of receipt (February 28, 2025), as acknowledged in the previous version of his pleading and as noted in Judge Devine's order on the previous demurrer. Under the sham pleadings rule, omitting the reference to February in the SACC does not get around this issue.

The demurrer to this cause of action is sustained.

D. Third Cause of Action ("Lack of Itemization of Debts")

The Third Cause of Action alleges Smith should have provided itemized information as to each of the two accounts held by Clifton. Cross-defendants demur, arguing there is no legal obligation under 15 U.S.C. sections 1692e or 1692g that requires accounts to be separately itemized or broken into multiple validation statements when the debt involves one debtor and one creditor. Cross-defendants argue there is only one "debt." In his SACC, Clifton cites 12 C.F.R. section 1006.34, which discusses requirements for validation. Nothing therein, or in Sections 1692e or 1692g, prohibits a creditor from providing the sum of the amounts owed on different accounts, together constituting the "debt." The information on the initial notice sent by Smith (Exhibit A to SACC) contained adequate information.

The demurrer to the third cause of action is sustained.

E. Fourth through Seventh Causes of Action (Validation Concerns)

Clifton alleges several violations related to validation of the debt. Cross-defendants demur, asserting none of the alleged violations have merit. While certain constraints are placed on debt collectors *after* a debt is disputed in writing within thirty days (see 15 U.S.C. § 1692g (b)), that was not

the case here. Clifton did not dispute in writing within thirty days. As such, the statement that he “got the information eventually” was not misleading. (See SACC, Exhibit G.)

The initial communication provided to Clifton also provided the information necessary for such a communication pursuant to both 15 U.S.C. section 1692g(a) and 12 C.F.R. section 1006.34(a) (amount due, to whom, the contact information for Smith, etc.).

The demurrer to the fourth through seventh causes of action is sustained.

F. Eighth and Ninth Causes of Action (“Unfair” Means and Collection of “Unauthorized” Attorney Fees)

Because cross-defendants refused to accept an offer by Clifton, after the present case was filed, to make payments pursuant to a payment plan, he alleges they violated 15 U.S.C. § 1692f. Cross-defendants demur because none of the requirements in the statute require acceptance of a settlement offer. This is correct. Nothing in the statute require such acceptance. 15 U.S.C. section 1692f prohibits “unfair or unconscionable means” to collect a debt. Conduct specifically listed as “unfair or unconscionable means” includes collecting interest, fees, charges, or expenses incidental to the principal obligation “*unless such amount is expressly authorized by the agreement creating the debt or permitted by law.*” (Emphasis added.)

Clifton’s Member Agreement with Patelco specifically authorizes the credit union to recover “collection costs” and attorneys’ fees where a legal action is filed. (See Complaint, Ex. A [member agreement].) Accordingly, Clifton’s characterization of Patelco’s justified attempts to exercise its rights under the member agreement as “unfair” and “intimidation tactics” (“Argument 6” in Memorandum of Points and Authorities in Support of Opposition) fails. Clifton’s speculation as to what Smith may or may not have communicated to his client, or the communications between other attorneys and Patelco (“Argument 7”) is not admissible or relevant to the inquiry here.

The demurrer to the eighth and ninth causes of action is sustained.

G. Tenth Cause of Action (Failure to Cease Communications After Requested)

Clifton appears to allege a violation of 15 U.S.C. section 1692c(c) because he cites that provision, and states he requested Smith cease all communications on June 10, 2025. (See SACC, Exhibit J.) Crucially, as pointed out by the moving papers, Clifton simply alleges that further contact after June 10, 2025, *would* constitute a violation. No further communications are alleged.

The demurrer to the tenth cause of action is sustained.

Leave to Amend

Because Clifton argues he can state claims under the Rosenthal Act, which is more protective than the federal FDCPA, and because the cross-defendants have not fully addressed any potential claims under state law, the Court is not convinced no cause of action can be stated under “any theory,” the standard for sustaining a demurrer. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) As a result, Clifton has another opportunity to amend.

In any amended cross-complaint plaintiff must specifically allege the sections of the Rosenthal

Act he claims were violated. Cross-defendants, for their part, in any future demurrer, shall address each cause of action in the headings of their briefing, clearly labeled to mirror the claims as alleged in the cross-complaint in order to facilitate the Court's review.

7. 9:00 AM CASE NUMBER: C25-01243
CASE NAME: PATELCO CREDIT UNION VS. GREGORY M CLIFTON JR
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF THE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: PATELCO CREDIT UNION
TENTATIVE RULING:

DENIED as moot. See Line 6.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: COMPEL FURTHER VERIFIED RESPONSES HECTOR LOPEZ**
FILED BY:
TENTATIVE RULING:

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Verified Responses on October 30, 2025 as relates to discovery propounded upon defendant Hector Lopez (the "Motion to Compel Further Responses re Defendant Lopez"). The Motion to Compel Further Responses re Defendant Lopez was set for hearing on March 16, 2026.

However, the motion was withdrawn by Plaintiff's Notice of Withdrawal filed March 3, 2026.

Disposition

The Court finds and rules as follows:

1. The Motion to Compel Further Responses re Defendant Lopez is DROPPED from calendar as WITHDRAWN.

9. 9:00 AM CASE NUMBER: C25-02735
CASE NAME: MELISA CALICA VS. FORD MOTOR COMPANY
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: FUTURE FORD OF CONCORD
TENTATIVE RULING:

Before the Court is Defendant Future Ford of Concord, LLC's Motion to Compel Arbitration and Stay Action ("Motion").

For the following reasons, Defendant's Motion to Compel Arbitration is **GRANTED**. Defendant's motion to stay is also **GRANTED**, and the action is **STAYED** pending the conclusion of the arbitration.

Factual Allegations and Procedural Background

Plaintiffs Melisa Nopuente Calica and Elmer Mensalves Calica (“Plaintiffs”) purchased a 2020 Ford Expedition (“Vehicle”) from Defendant Future Ford of Concord on March 22, 2021. (¶¶ 7, 10.) At the time of purchase, Plaintiff signed a Retail Installment Sale Contract (“RISC”). (Clayton Decl. ¶ 2, Ex. A.) The RISC contained an arbitration provision (the “Arbitration Agreement”). (*Ibid.*) Plaintiffs signed the portion of the RISC specifically agreeing to arbitration. (*Ibid.*)

On April 27, 2022, Plaintiff filed the instant action alleging violations of the Song-Beverly Consumer Warranty Act, Civil Code Section 1790 *et seq.* (“Song-Beverly Act”) against Defendants Ford Motor Company and Future Ford of Concord. Plaintiffs allege that during their ownership of the Vehicle defects appeared in the suspension and transmission systems. (¶ 14.) They allege these defects were covered by the express warranties included in their purchase of the Vehicle. (*Ibid.*) Plaintiffs took the Vehicle to Defendant and/or its authorized service and repair facilities, but they were unable to repair the Vehicle “to conform to the applicable express warranties after a reasonable number of opportunities to do so.” (¶ 16.)

Defendant Future Ford of Concord moves to compel arbitration based on the Arbitration Agreement in the RISC. The Arbitration Agreement states that it is governed by the Federal Arbitration Act (“FAA”), (9 U.S.C. § 1 *et seq.*) “and not by any state law concerning arbitration.” (RISC p. 7.)

Analysis

Governing Law

The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement. (See *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355: “[T]he presence of interstate commerce is not the only manner under which the FAA may apply. ... [T]he parties may also voluntarily elect to have the FAA govern enforcement of the Agreement”). In fact, the California Supreme Court found the FAA to apply in a case involving the same RISC language indicating that the FAA governed. (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1128 fn. 2.) Plaintiffs do not argue that the FAA does not apply.

“[I]n ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. [Citations.] General principles of California contract law guide the court in making this determination.” (*Id.* at 1128 quoting *Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

Existence of Arbitration Agreement

The threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (“*Rosenthal*”); Code Civ. Proc. §§ 1281.2, 1290.2.) Future Ford, as the party moving to compel arbitration, bears the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. (*Rosenthal, supra*, 14 Cal.4th at 413.)

Future Ford attaches a copy of the RISC as Exhibit A to the Clayton Declaration. The RISC indicates in its title that there is an Arbitration Agreement included therein: “Retail Installment Sale Contract – Simple Finance Charge (with Arbitration Provision).” (Ex. A, all caps removed.) On page 1 of the RISC,

there is a section titled: "Agreement to Arbitrate" which also notes there is an Arbitration Agreement included. Plaintiffs signed this section:

Agreement to Arbitrate: By signing below, you agree that, pursuant to the Arbitration Provision on page 7 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.	
BY:	<i>Melisa N Calica</i>
Buyer Signs X	
Co-Buyer Signs X	<i>[Signature]</i>

On Page 6, there is another reference to the Arbitration Agreement wherein Plaintiffs agreed that they read the entire RISC and agree to its terms, "including the arbitration provision on page 7 of this contract..." (RISC, p. 6.) Plaintiffs both signed this section of the RISC as well. Page 7 of the RISC is the Arbitration Agreement which Plaintiffs again both signed.

In their opposition, Plaintiffs concede that the purchase of the Vehicle "was memorialized in a Retail Installment Sale Contract ("RISC")" citing to Exhibit A to the Clayton Declaration. (Opp. at 2:20-23.) They also admit that the "RISC contains an arbitration provision on page 7." (*Ibid.*)

The above is sufficient to meet Future Ford's burden to show the existence of an arbitration agreement.

Plaintiffs, however, argue that Future Ford, as the selling dealer, cannot enforce the RISC arbitration clause as a third-party beneficiary. (Opp. at III A.)

Third-Party Beneficiary

The RISC was entered into between Plaintiffs and Defendant Future Ford:

Buyer Name and Address (Including County and Zip Code)	Co-Buyer Name and Address (Including County and Zip Code)	Seller-Creditor (Name and Address)
MELISA N CALICA 2695 CHERRY LN WALNUT CREEK, CA 94597 COUNTY: CONTRA COSTA 925/470-7480	ELMER M CALICA 5405 SOUTHWOOD WAY ANTIOCH, CA 94531 COUNTY: CONTRA COSTA 925/470-7480	FUTURE FORD OF CONCORD 2285 DIAMOND BLVD CONCORD, CA 94520 925/686 5000

You, the Buyer (and Co-Buyer, if any), may buy the vehicle below for cash or on credit. By signing this contract, you choose to buy the vehicle on credit under the agreements on all pages of this contract. You agree to pay the Seller - Creditor (sometimes "we" or "us" in this contract) the Amount Financed and Finance Charge in U.S. funds according to the payment schedule below. We will figure your finance charge on a daily basis. The Truth-In-Lending Disclosures below are part of this contract.

As noted on the first page of the RISC, the seller-creditor is Future Ford of Concord, which is sometimes referred to as "we" or "us." The essential elements of a contract include parties capable of contracting, their consent, a lawful objective, and consideration. (Civ. Code § 1550.) Here, the parties to the RISC are Plaintiffs and Future Ford. As such, Future Ford is not a 'third-party' to the contract. Accordingly, Plaintiffs' arguments relating to third-party enforcement of the RISC are without merit.

Plaintiffs' citation to and reliance upon the Court of Appeals' decision in *Ford Motor Warranty Cases (Ochoa v. Ford Motor Co.)* (2023) 89 Cal.App.5th 1324 is similarly misplaced. There, the contract at issue was materially the same as in this case. As noted by the court, the sale contracts were "between the vehicle purchaser, on the one hand and the selling dealer, on the other." (*Id.* at 1329.) "The purchaser is referred to as the 'Buyer' or 'you,' and the selling dealer is referred to as the 'Creditor-Seller,' 'we,' or 'us.'" (*Ibid.*) Ford Motor Company, the manufacturer, was not named in the sales

contract. (*Ibid.*)

As in this case, plaintiffs began experiencing problems with their vehicles which were alleged to be covered by warranty. (*Id.* at 1330.) Plaintiffs sued Ford Motor Company (the manufacturer) “but did not sue the dealer parties to the sale contracts.” (*Ibid.*) Ford Motor Company moved to compel arbitration under the terms of the RISC as a third-party beneficiary and under estoppel theories. (*Ibid.*) The Court of Appeal analyzed those theories and found the Ford Motor Company could not compel arbitration as it “was not a third-party beneficiary of those agreements.” (*Id.* at 1329.)

The Court of Appeals decision was affirmed by the California Supreme Court. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122.) As the Supreme Court noted, the “general rule is that one must be a party to an arbitration agreement either to be bound by or to invoke it.” (*Id.* at 1128.)

The Arbitration Agreement provides that “Either you or we [i.e. Future Ford] may choose to have any dispute between us [i.e. Future Ford] decided by arbitration and not in court or by jury trial.” (RISC p. 7.) It is unequivocal that Future Ford is a party to the Arbitration Agreement, and as such has every right to invoke and enforce it.

Scope of Arbitration Agreement

The relevant portion of the Arbitration Agreement defining the scope of the agreement states, in pertinent part:

“Any claim or dispute, whether in contract, tort, statute or otherwise ... between you and us [i.e. Future Ford] ... which arises out of or relates to ... [the] purchase or condition of this vehicle, this contract or any resulting transaction or relationship ... shall, at your or our [i.e. Future Ford] election, be resolved by neutral, binding arbitration and not by a court action.” (RISC at p. 7, emphasis added.)

Plaintiffs contend that the Vehicle did not work as intended and was not properly repaired by Defendants. As such, all of their claims ‘arise out of or related to’ the ‘condition of the vehicle.’ They also all relate to the contract and resulting relationship as they all pertain to the Vehicle and Future Ford’s purported failure to properly repair it.

Unconscionability

Plaintiffs also argue that the Arbitration Agreement should not be enforced as it is unconscionable.

The “unconscionability doctrine ‘has both a procedural and a substantive element.’” (*OTO, L.L.C.*, *supra*, 8 Cal.5th at 125.) “The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.” (*Ibid.* quoting *Pinnacle*, *supra*, 55 Cal.4th at 246.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’” (*OTO, L.L.C.* 8 Cal.5th at 125.) “Instead, they are evaluated on a ‘sliding scale.’” (*Ibid.*) “[T]he more substantively oppressive the contract term, the less

evidence of procedural unconscionability is required to ‘conclude that the term is unenforceable.’” (*Ibid.*) “Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required.” (*Ibid.*)

“The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Ibid.* quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 912.) Here, Plaintiffs argue that the Arbitration Agreement is both procedurally and substantively unconscionable.

Procedural Unconscionability

Procedural unconscionability involves the components of “oppression” and “surprise.” (*OTO, supra*, 8 Cal.5th at 126.) “Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.” (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.) Surprise, for purposes of procedural unconscionability, “involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Ibid.*) Plaintiff contends that both oppression and surprise are present.

Oppression

“Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.” (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.)

Plaintiffs argue that they “had no meaningful opportunity to negotiate the arbitration clause; it was presented as a non-negotiable term of the vehicle purchase,” and that they “had no ability to bargain with or walk away from the dealership’s standard contract terms.” (Opp. at 5:13-17.) Plaintiffs, however, present no evidence to support this argument. Plaintiffs fail to provide any declaration supporting their claims indicating how the RISC and Arbitration Agreement were presented to them, how long they had to review it, or whether or not they even attempted to negotiate the inclusion of the Arbitration Agreement.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) Even if the allegations could be considered evidence, “the statements contained in the memorandum [of points and authorities] lack foundation and could not be used by the court to evaluate the consideration.” (*Brehm Cmtys. v. Superior Court* (2001) 88 Cal.App.4th 730, 735; see also *In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515: “The allegations of a brief are not evidence and a brief is not a sworn document.”)

Plaintiffs have failed to meet their burden to show ‘oppression’ in the presentation of the Arbitration Agreement.

Surprise

Surprise, for purposes of procedural unconscionability, “involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Flores, supra*, 93 Cal.App.4th at 853.) Plaintiffs argue that the Arbitration Agreement is “buried in the

standard form RISC on page 7, in fine print, among numerous other contractual provisions.” (Opp. at 5:18-19.)

As noted by Defendant, the title of the RISC specifically indicates that there is an arbitration provision contained therein. There are also two separate areas within the RISC which specifically reference the Arbitration Agreement – sections which the Plaintiffs separately signed. The Arbitration Agreement itself is on its own separate page and titled:

ARBITRATION PROVISION
PLEASE REVIEW – IMPORTANT – AFFECTS YOUR LEGAL RIGHTS

There is nothing inconspicuous or subtle about the Arbitration Agreement. This separate page is also separately signed by Plaintiffs. Plaintiffs have failed to meet their burden to show ‘surprise’ in the presentation of the Arbitration Agreement.

Substantive Unconscionability

Substantive unconscionability may be found where the substantive provisions of the agreement are so overly harsh or unreasonably favorable to the more powerful party that they undermine its neutrality. (*Sanchez, supra*, 61 Cal.4th at 910-11, 913; *Armendariz, supra*, 24 Cal.4th at 117.) Substantive unconscionability focuses on the substantive fairness of the terms and whether the agreement is “unfairly one-sided.” (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071; *Baltazar v. Forever 21, Inc., supra*, 62 Cal.4th at 1248.) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Sanchez, supra*, 61 Cal.4th at 911-12.)

“A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to “shock the conscience.” [Citation omitted.]’” (*Pinnacle, supra*, 55 Cal.4th at 246 [quoting *24 Hour Fitness, Inc. v. Superior Court* (1998) 66 Cal.App.4th 1199, 1213].)

Plaintiffs argue that the Arbitration Agreement requires them to give up their right to a jury trial. However, the purpose of an arbitration agreement is to uphold the contracting parties’ agreement to waive a jury trial for a more expeditious process to resolve claims. “California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration.” (*Coast Plaza Doctors Hosp. v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 686.) As the California Supreme Court noted “... the decision to arbitrate grievances evinces the parties’ intent to bypass the judicial system and thus avoid potential delays at the trial and appellate levels” (*Ibid.* quoting *Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 10.)

As every arbitration agreement necessarily waives the parties’ right to a jury, the waiver of a jury right is not a factor in deciding substantive unconscionability.

Plaintiffs’ argument regarding the class action waiver has no application here as Plaintiffs do not allege any class claims.

Stay

As noted above, the Arbitration Agreement is governed by the FAA. Under the FAA, if the Court determines that the matter be referred to arbitration, the Court “shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement....” (9 USC § 3.) When the FAA applies, so does “section 3 which requires the court to stay the judicial proceeding and compel arbitration.” (*Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1122.)

“Here, as in other contexts, the use of the word ‘shall’ ‘creates an obligation impervious to judicial discretion.’” (*Smith v. Spizzirri* (2024) 601 U.S. 472, 476 quoting *Lexecon Inc. v. Milberg Weiss Bershad Hynes & Lerach* (1998) 523 U.S. 26, 35.) “That plain statutory text requires a court to stay the proceedings.” (*Ibid.*) “When § 3 says that a court ‘shall ... stay’ the proceeding, the court must do so.” (*Ibid.*) The FAA “does not authorize courts to stay arbitration pending resolution of litigation, or to refuse to enforce a valid arbitration provision to avoid duplicative proceedings or conflicting rulings. (*Mastick v. TD Ameritrade, Inc.* (209 Cal.App.4th 1258, 1263.)

As the Court has found that Future Ford’s motion to compel is to be granted, it must and will stay the proceedings in full until the arbitration has concluded.

Conclusion

Defendant Future Ford has met its burden to show that there is an enforceable arbitration agreement. Plaintiffs have failed to demonstrate that Future Ford is precluded from enforcing the Arbitration Agreement, or that it is unconscionable.

As such, Future Ford’s motion to compel arbitration is **GRANTED**. The request to stay the matter is also **GRANTED**. This matter is stayed in full pending resolution of the arbitration.

10. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY AND PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Petitioner Grange Insurance Association (“Petitioner”) filed a Verified Petition to Perpetuate Testimony and Preserve Evidence on September 25, 2025 (the “Petition”). The matter was set for hearing on February 2, 2026.

The Court published its tentative ruling for the February 2, 2026 hearing date expressing concerns about the merits of the motion. In any event, the Court did not decide the merits as there was no showing of proper service. The Court continued the hearing to March 16, 2026 and ordered Petitioner to give notice.

Background

Petitioner seeks an order pursuant to California Code of Civil Procedure sections 2035.010 *et seq.* authorizing “pre-litigation discovery by taking oral depositions and/or preserving evidence for the purpose of perpetuating testimony relevant to an anticipated action involving Respondent Cynthia Gomez.” Petition, p. 1.

Petitioner contends that it is “currently unable to bring or cause the anticipated action to be brought because Respondent has served a demand for arbitration on the Petitioner and a complaint has not yet been filed.” Petition, p. 3.

Analysis

Code of Civil Procedure section 2035.010 provides that one “who expects to be a party or expects a successor in interest to be a party to an action that may be cognizable in a court of the state” may obtain discovery for the purpose of perpetuating that person’s own testimony or that of another natural person or organization, or of preserving evidence for use in the event an action is subsequently filed. Code Civ. Proc. § 2035.010. The methods permissible for such discovery are enumerated in Code of Civil Procedure section 2035.020. *Id.* at § 2035.020. Code of Civil Procedure section 2035.010 and the related statutes are referred to herein as the “Preservation of Evidence Statutes.”

The Preservation of Evidence Statutes require the filing of a verified petition in the “superior court of the county of the residence of at least one expected adverse party, or, if no expected adverse party is a resident of the State of California, in the superior court of a county where the action or proceeding may be filed.” Code Civ. Proc. § 2035.030. The statutes prescribe the matters to be set forth in the verified petition, including:

- (1) The expectation that the petitioner or the petitioner’s successor in interest will be a party to an action cognizable in a court of the State of California.
- (2) The present inability of the petitioner and, if applicable, the petitioner’s successor in interest either to bring that action or to cause it to be brought.
- (3) The subject matter of the expected action and the petitioner’s involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition.
- (4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ.
- (5) The facts that the petitioner desires to establish by the proposed discovery.
- (6) The reasons for desiring to perpetuate or preserve these facts before an action has been filed.
- (7) The name or a description of those whom the petitioner expects to be adverse parties so far as known.
- (8) The name and address of those from whom the discovery is to be sought.
- (9) The substance of the information expected to be elicited from each of those from whom discovery is being sought.

Code Civ. Proc. § 2035.030(b)(1)-(9).

If a court determines that all or part of the discovery requested under the Preservation of Evidence Statutes may prevent a failure or delay of justice, the court shall make an order authorizing that discovery. Code Civ. Proc. § 2035.050(a). The order shall identify any witness whose deposition may be taken, and any documents, things, or places that may be inspected, and any person whose physical or mental condition may be examined. *Id.* at § 2035.050(b).

Service

A petitioner is required to “...cause service of a notice of the petition under Section 2035.030 to be made on each natural person or organization named in the petition as an expected adverse party.” Code Civ. Proc. § 2035.040. **This service shall be made in the same manner provided for the service of a summons. *Id.***

Service must be effected at least 20 days prior to the date specified in the notice for the hearing on the petition. Code Civ. Proc. § 2035.040(c).

Since the last hearing date, Plaintiff filed a Notice of Hearing on February 6, 2026. That notice includes a Proof of Service reflecting service of the notice and the attached copy of the Court’s Minute Order with the prior tentative ruling. That service was done via electronic service on an attorney, Asher Hoffman.

In the absence of an express agreement to accept service of process, electronic service on a party’s attorney is not service “in the same manner provided for the service of a summons.” Code Civ. Proc. § 2035.040. Petitioner has not shown such an agreement. Nor has Petitioner shown service done in any manner prescribed for service of a summons. See Code Civ. Proc. § 415.10 *et seq.*

For this reason alone, the Court would deny the motion.

Merits

Even if service had been properly done, the Court would deny the motion.

As discussed in the prior tentative ruling, Petitioner has not demonstrated that Petitioner is entitled to resort to the Preservation of Evidence Statutes where the matter in dispute is subject to arbitration, as Petitioner appears to concede. In such instance, arguably it cannot be said that there is an expectation that the petitioner will be a party to an action cognizable in a court of the State of California. While the Court is not aware of any California authorities on point, other courts have so held. See e.g. *In re Schumacher* (La. Ct. App., 4th Cir. 1980) 389 So. 2d 881, 882 (trial court erred in granting appellee’s petition to perpetuate testimony because “[a]ppellee is bound to the arbitration provision of his agreement and is therefore unable to bring an action ‘cognizable in any court of this state’”).

Moreover, the present Petition does not attach any governing arbitration agreement or otherwise address the extent to which discovery may be available in the arbitration forum. If the arbitration forum provides for discovery or discovery-like mechanisms, it is not clear to the Court that resort to the Preservation of Evidence Statutes is necessary to prevent a failure or delay of justice. At the very least, Petitioner has failed to make such showing.

The Court’s prior order also gave Petitioner an opportunity to further address the merits. See Minute Order dated February 3, 2026 (“Counsel may file a supplemental paper regarding the need for the petition.”). Petitioner did not file anything further.

Disposition

The Court finds and rules as follows:

1. The Petition is DENIED.
2. The Court shall issue the order after hearing.

***HEARING ON MOTION IN RE: STRIKE COMPLAINT**

FILED BY: DESCOR, INC.

TENTATIVE RULING:

Defendant DesCor, Inc.'s motion to strike allegations in the complaint is **denied**. DesCor shall file and serve their answer within 10 days of notice of entry of the order.

Plaintiff Thomas Willis worked for DesCor, a construction company, in 2022 and 2023. He was laid off on November 16, 2023. Plaintiff filed this complaint for (1) failure to pay overtime, (2) breach of contract, (3) breach of implied-in-fact contract, (4) breach of the implied covenant of good faith and fair dealing, (5) deceit/ promissory fraud / fraudulent inducement and (6) violations of Business and Professions Code section 17200.

Code of Civil Procedure section 436 states that the Court *may* strike allegations that are "irrelevant, false or improper." Defendant seeks to strike the following allegations in the complaint: 26, 27, 28, 47, 48, 49, 55, 56, 57, 58, 59, 71, 75, 93, 94, 95, 96, 97, 98, 99, 102, 104, 107, and 123. Defendant also argues about striking paragraph 10, but that paragraph was not included in the motion.

There are two groups of allegations subject to this motion. First, allegations regarding the terms of the proposed severance agreement that Defendant offered Plaintiff. (Comp. ¶¶95-99, 102, 104, and 107.) Second, Defendant seeks to strike various allegations as irrelevant and/or prejudicial:

- Defendant's public statement about how it values its employees. (Comp. ¶¶26 – 28.)
- Allegations regarding other lawsuits involving Defendant. (Comp. ¶¶47 – 49.)
- An interaction with one of Defendant's co-founders at a company picnic and Defendant's refusal to pay for a larger room for Plaintiff and his family to attend the company Christmas party. (Comp. ¶¶55 – 59.)
- An interaction with Plaintiff's supervisor where the supervisor told Plaintiff he looked like a laborer. (Comp. ¶71.)
- An allegation that Defendant was trying to save money and there was a tension between Plaintiff's theoretical duties and the actual work. (Comp. ¶75.)
- An allegation that a letter from Defendant's attorney that Plaintiff was laid off is not consistent with the publicly available information about Defendant. (Comp. ¶123.)

With the exception of the communications regarding severance, which require additional discussion, the Court denies Defendant's motion to strike these paragraphs. Plaintiff is entitled to include allegations that might support his causes of action or provide background. Further, the claims of prejudice are premature. If Plaintiff seeks to present evidence on these matters to a jury then Defendant may re-raise their concern regarding prejudice.

Regarding the severance communications Defendant requests to strike some allegations regarding the proposed severance agreement and how the language included within it was false and Plaintiff thought that something was off about the agreement. (Comp. ¶¶93-99, 102, 104, 107.)

As an initial matter, the Court notes that Defendant did not request striking the summary of the proposed severance agreement including the amount offered in the settlement. (Comp. ¶91.) Thus, much of the proposed agreement, including the amount and the claim that Plaintiff resigned as opposed to being laid off, are included in the complaint.

Defendant argues that these allegations are inadmissible under Evidence Code section 1152(a). Section 1152(a) makes evidence of a promise to furnish money to someone who has sustained loss or damage, as well as conduct or statements made in negotiation, “inadmissible to prove his or her liability for the loss or damage or any part of it.” These communications can be admissible for other purposes. (see, e.g. *Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 396 (an offer to compromise can be admissible to prove the instrumentality of the tort); *Warner Constr. Corp. v. L.A.* (1970) 2 Cal.3d 285, 297, fn. 12 (a communication subject to section 1152 can be used to show that a party acted in good faith and to rebut defendant's claim that plaintiff failed to mitigate damages).)

Defendant argues that section 1152 applies to severance agreements. *Mangano v. Verity, Inc.*, (2009) 179 Cal.App.4th 217 held that a severance agreement is covered under section 1152 and thus, can be excluded from evidence at trial “for purposes of establishing liability.” (*Id.* at 222.) Nothing in *Mangano* addresses whether a severance agreement can be used for other purposes or whether it can be included in the complaint.

Defendant next argues that while *Mangano* addressed a motion in limine, it should apply here because “[t]he complaint's allegations are ““a judicial admission”” that concede ““the truth of [the] matter”” and have ““the effect of removing it from the issues.”” [Citation.]” (*Shirvanyan v. Los Angeles Community College Dist.* (2020) 59 Cal.App.5th 82, 100.) Defendant’s argument misses the point in *Shirvanyan* that allegations in a complaint act as judicial admissions against the drafting party, not the opposing party.

In conclusion, Defendant has not convinced the Court that the proposed severance agreement allegations are barred for all purposes and thus, the Court finds that there is no reason to strike them from the complaint.

12. 9:00 AM CASE NUMBER: L23-04858
CASE NAME: DISCOVER BANK VS. GEMMA SAMBI
***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Plaintiff Discover Bank (“Plaintiff”) filed a Motion to Enter Judgment pursuant to Code of Civil Procedure section 664.6 on October 2, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to

Enter Stipulated Judgment after Default was set for hearing on March 16, 2026.

Background

The parties entered into that certain settlement agreement filed on January 19, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendant Gemma D Sambhi (“Defendant”) in the amount of \$2,712.00, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed October 2, 2025 (“Supporting Declaration”), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of \$3,372.45 plus costs, less credits for payments made, in the event of a default. *Id.*, **Exhibit A**, ¶¶12-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$1,790.45 due and owing, plus costs of \$293.50. See Supporting Declaration, ¶¶9-10; see Memorandum of Costs filed October 2, 2025.

Analysis

Code of Civil Procedure section 664.6 provides a summary procedure for the enforcement of a settlement agreement by entering a judgment pursuant to the terms of the parties’ settlement. Code Civ. Proc. § 664.6; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 15.31. Where the parties stipulate to settle pending litigation either in writing or orally before the court, the court may, on motion, enter a judgment pursuant to the settlement terms. *Id.* The court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,790.45, plus costs of \$293.50, totaling \$2,083.95.
4. Plaintiff to submit a revised form of money judgment which appropriately designates Plaintiff’s current legal name (e.g. “Capital One, N.A., successor by merger to Discover Bank”). If no order for leave to amend Plaintiff’s name has been previously entered, leave is hereby granted and the operative complaint deemed so amended. The Court takes judicial notice of the “NOTICE OF PLAINTIFF MERGER” filed in multiple pending cases before the Court regarding the merger.
5. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.
6. The Court shall issue the order after hearing.

CASE NAME: CAPITAL ONE, N.A. VS. BRANDIE BREWER

***HEARING ON MOTION IN RE: SET ASIDE CCP 664 AND ENTER JUDGMENT**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion to Set Aside CCP 664.6 Dismissal, and Enter Judgment against Defendant pursuant to Code of Civil Procedure section 664.6 on October 2, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on March 16, 2026.

Background

The parties entered into that certain settlement agreement filed on October 8, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Brandie Brewer ("Defendant") in the amount of \$10,312.99, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Laura M. D'Anna filed October 2, 2025 ("Supporting Declaration"), ¶¶4-6 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of \$10,312.99 plus costs, less credits for payments made, in the event of a default. *Id.*, **Exhibit 1**, ¶¶4-5 and 8.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶9. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶¶4 and 8.

After credit for amounts paid, there remains \$8,592.99 due and owing, plus costs of \$508.00. See Supporting Declaration, ¶¶9-11.

Analysis

Code of Civil Procedure section 664.6 provides a summary procedure for the enforcement of a settlement agreement by entering a judgment pursuant to the terms of the parties' settlement. Code Civ. Proc. § 664.6; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 15.31. Where the parties stipulate to settle pending litigation either in writing or orally before the court, the court may, on motion, enter a judgment pursuant to the settlement terms. *Id.* The court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,592.99, plus costs of \$508.00, totaling \$9,100.99.
4. Plaintiff's submitted form of money judgment against Defendant will be entered by the Court.
5. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

6. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: N25-1849
CASE NAME: GARY DARTEZ VS. CITY OF ANTIOCH RENT PROGRAM
***HEARING ON MOTION IN RE: ORDER PRESERVING EVIDENCE**
FILED BY:
TENTATIVE RULING:

Petitioners Gary Dartez and Tamisha Latimore (“Petitioners”) filed a Motion for Order Preserving Evidence on January 14, 2026 (the “Motion for Order Preserving Evidence”). The matter was set for hearing on March 16, 2026.

Background

Petitioners seek an “Order Preserving Evidence to prevent further loss, alteration, or destruction of evidence material to this action and related proceedings.” See Motion for Order Preserving Evidence, p. 1 *et seq.*

Analysis

Failure to Properly Serve

First, Petitioner purported to serve the Motion for Order Preserving Evidence by mail on an apparent agent for service of process.

Respondent City of Antioch (the “City”) has already appeared in the matter through its counsel of record, the City Attorney and Meyers Nave. Service should have been done on the City’s counsel of record. Nonetheless, the City filed an Opposition.

For this reason alone, the Court would deny the motion.

Denial on the Merits

Second, even if properly served, the Court would deny the motion on the merits.

Petitioners reference the “Court’s inherent equitable authority, Code of Civil Procedure §§ 128(a)(1), 128(a)(4)” and *Williams v. Russ* (2008) 167 Cal.App.4th 1215 as the authority for the motion.

The *Williams* case dealt with a trial court’s findings that the evidence supported an inference that a client in a legal malpractice lawsuit had intentionally allowed material unfavorable to his claims to be destroyed. *Williams v. Russ* (2008) 167 Cal.App.4th 1215. The court upheld discovery sanctions for spoliation of evidence. *Id.* at 1228. The case has nothing to do with the Court’s authority to issue a “preservation order” to prevent the spoliation of evidence, especially as relates to a third party to the pending litigation. Nor do subsections (a)(1) or (a)(4) of Code of Civil Procedure section 128 related to authority to issue a “preservation order” to prevent the spoliation of evidence.

Nonetheless, the Court most certainly has authority to make orders for the preservation of relevant evidence in the parties’ possession for discovery purposes. See discussion in *Weil & Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:19.12; see *Northpoint Homeowners Assn. v. Superior Court* (1979) 95 Cal. App. 3d 241, 244 (“...the trial court has inherent power to make certain orders in furtherance of the discovery and presentation of evidence related to pending civil litigation.”)

However, Petitioners have failed to show that the Court ought to exercise such authority here by issuing

the requested preservation order.

Petitioners make reference to various things that they assert have happened since late 2025, apparently with respect to an eviction and their communications with “Respondent Redwood Property Investors III, LLC.” The records that they seek to preserve are described as records they believe to be related to their tenancy and appear to be records that would, if they exist, be primarily in the possession of Redwood Property Investors III, LLC. Although some categories of described records are more generalized.

To be clear, Redwood Property Investors III, LLC is not a respondent. The initiating Petition was filed by petitioners Gary Dartez and Tamisha Latimore (“Petitioners”) on September 17, 2025. A Verified First Amended Petition was filed on February 25, 2026. The Amended Petition seeks a writ of mandate to set aside an August 28, 2025 decision regarding “Petitioners’ rent petition, filed on May 21, 2025.” There are other causes of action alleged, including Declaratory Relief. **None of those causes of action is alleged as against Redwood Property Investors III, LLC.** Redwood Property Investors III, LLC is listed on the caption and described in the body of the First Amended Petition as the “Real Party in Interest.” Indeed, at Paragraph 12, Petitioner plead as much:

12. Redwood is named in this writ proceeding only as a real party in interest and affected participant in the underlying administrative matter, because the City’s challenged administrative actions and decision concern Redwood’s interests and submissions in that proceeding.

The Court is mindful of a pleading filed by Redwood Property Investors III, LLC entitled “Notice of Appearance” on March 3, 2026. The Court has reviewed its Opposition and, fundamentally, it makes the same observation that it is not a proper party to the present action.

If there is a dispute over retention or production of relevant records in relation to an eviction, then Petitioners’ remedy is to seek an order in the eviction action. Petitioners can raise the issue in any pending eviction action or else bring an appropriate action against Redwood Property Investors III, LLC if there is a basis for doing so.

Indeed, the Court does not conclude that it has any jurisdiction to issue an order requiring Redwood Property Investors III, LLC to do anything, much less preserve evidence.

Nor have Petitioners shown that the respondent City of Antioch (the “City”) has possession of records relating to the writ and other causes of actions pled in this case which are at risk of spoliation by the City.

Indeed, other than argument, no evidence is proffered by Petitioners in support of their motion. A “Notice of Additional Facts” is not a competent means of putting evidence before the Court on a motion. That document is not a declaration signed under penalty of perjury. Even if the Court’s considers the Verified First Amended Petition, which it has, no grounds appear for the requested order.

Disposition

The Court finds and rules as follows:

1. The Motion for Order Preserving Evidence is DENIED.
2. The Court shall issue the order after hearing.

**Law & Motion
Add On**

15. 9:00 AM CASE NUMBER: C24-01939

CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV

***HEARING ON MOTION IN RE: SET ASIDE & VACATE JUDGMENT OF DISMISSAL ON THE GROUNDS OF UNDUE INFLUENCE & LACK OF CAPACITY**

FILED BY:

TENTATIVE RULING:

Plaintiff Special Administrator of the Estate of Nickolai F. Popov, Michael Popov "Special Administrator"), filed a Motion to Set Aside And Vacate Judgment Of Dismissal On The Grounds Of Undue Influence And Lack Of Capacity ("Motion to Vacate") in this matter on April 14, 2025. The Motion to Vacate was initially set for hearing on August 04, 2025.

As noted in a prior tentative ruling, at the hearing on August 4, 2025, the Court continued this motion to November 10, 2025, after the probate hearing regarding the administrator of the Estate of Nickolai Popov on August 25, 2025, in a related Probate matter, Case No. P25-00516 (the "Probate Case").

The Court later continued the hearing on Motion to Vacate (and another pending motion, the Motion to Stay by Alexander Popov) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

At the hearing on January 26, 2026, this Court again continued the Motion to Vacate until after the Probate hearing regarding the special administrator of the Estate of Nickolai Popov on January 27, 2026.

The Probate Cort granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

The Court finds that it is necessary and appropriate to stay this case considering the Solano County Criminal Proceedings and the ruling by the Court in the Probate Case.

The **Court GRANTS the Motion to Stay.**

The Court set a status conference regarding the status of the Criminal Proceedings and the Probate Case on August 08, 2026, at 8:30 am in Department 34.